

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF ANDREYEV AND OTHERS v. RUSSIA

(Applications nos. 35031/13 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

2 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Andreyev and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 February 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. Some of the applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC],

no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia* (no. 74568/12, ECHR 2016 (extracts)); *Navalnyy and Yashin v. Russia* (no. 76204/11, 4 December 2014); and *Kasparov and Others v. Russia* (no. 21613/07, 3 October 2013), the Court already found a violation in respect of issues similar to those in the present cases.

9. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some of the applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

12. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention and its Protocol in the light of its findings in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; *Karelin v. Russia*, no. 926/08, 20 September 2016, related to examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO), *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42,

8 October 2019, concerning lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention).

IV. REMAINING COMPLAINTS

13. In view of the above findings, the Court considers that there is no need to deal separately with the remaining complaints raised by some applicants under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings.

14. Furthermore, in application no. 55071/17 the applicant also raised a complaint under Article 5 of the Convention.

15. The Court considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, this complaint does not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see, most recently, *Savelov and Others v. Russia* [Committee], nos. 62815/10 and 5 others, 1 December 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assemblies and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings, and *declares* the remainder of application no. 55071/17 inadmissible;

3. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

4. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

6. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 2 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
1.	35031/13 20/05/2013	**Vladimir Fedorovich ANDREYEV** 1973	Terekhov Konstantin Ilyich Moscow	Picketing related to journalistic issues Moscow 05/12/2012	Article 20.2 § 5 of CAO	fine of RUB 10,000	Basmannyy District Court of Moscow 31/01/2013		3,000
2.	44943/17 26/05/2017	**Aleksey Aleksandrovich DEMENYUK** 1986	Terekhov Konstantin Ilyich Moscow	Opposition manifestation Moscow 26/03/2017	Article 19.3 § 1 of CAO	15 days of administrative detention	Moscow City Court 03/04/2017	Art. 5 (1) - overnight detention as administrative suspect from 26/03/2017 to 28/03/2017, in excess of 3 hours, for the purpose of drawing up a record of administrative offence; the applicant remained in detention even after the said record was completed; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court 03/04/2017 Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
3.	54001/17 17/07/2017	**Eduard Aleksandrovich GOLUBNICHIY** 1989	Terekhov Konstantin Ilyich Moscow	Opposition manifestation Moscow 26/03/2017	Article 19.3 § 1 of CAO	10 days of administrative detention	Moscow City Court 31/03/2017	Art. 5 (1) - detention as administrative suspect on 26/03/2017 - 28/03/2017, in excess of 3 hours, for the purpose of drawing up a record of administrative offence, the applicant remained in detention even after the said record was completed Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	3,900
4.	55071/17 17/07/2017	**Ansar Gilniakhmetovich AKHMETOV** 1951	Terekhov Konstantin Ilyich Moscow	Opposition manifestation Naberezhnye Chelny 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Supreme Court of the Tatarstan Republic 21/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Supreme Court of the Tatarstan Republic, 21/06/2017	3,900
5.	55072/17 17/07/2017	**Aleksey Konstantinovich SAMOKHIN** 1991	Terekhov Konstantin Ilyich Moscow	March against corruption Bryansk 26/03/2017	Article 20.2 § 5 of CAO	25 hours of community works	Bryansk Regional Court 31/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Bryansk Regional Court 31/05/2017	3,900
6.	70882/17 07/09/2017	**Oleg Olegovich PROSIN** 1994	Terekhov Konstantin Ilyich Moscow	"Strall against corruption" picket Kostroma 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kostroma Regional Court 27/04/2017	Art. 5 (1) – escorting and detention as administrative suspect on 26/03/2017 for the purpose of drawing a record of administrative offence	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
7.	78275/17 03/11/2017	**Valentina Vasilyevna TOLMACHEVA** 1947	Terekhov Konstantin Ilyich Moscow	Anticorruption manifestation Rostov-on-Don 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Rostov Regional Court 25/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Rostov Regional Court, 25/05/2017	3,900
8.	78277/17 03/11/2017	**Igor Yuryevich LYAMIN** 1967	Terekhov Konstantin Ilyich Moscow	Anticorruption manifestation Tula 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Tula Regional Court 04/05/2017	Art. 5 (1) - detention as administrative suspect on 26/03/2017, from 2.30 p.m. to 11.00 p.m., in excess of 3 hours for the purpose of drawing a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Tula Regional Court 04/05/2017	3,900
9.	24191/18 08/05/2018	**Andrey Igorevich KOROBTSOV** 1990	Terekhov Konstantin Ilyich Moscow	Picket in support to Navalnyy Smolensk 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Smolensk Regional Court 21/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Smolensk Regional Court, 21/11/2017	3,900
10.	24204/18 08/05/2018	**Sergey Valeryevich SMIRNOV** 1981	Terekhov Konstantin Ilyich Moscow	Picket against the shutting down of the web channels on Youtube Moscow 01/10/2017	Articles 19.3 § 1 and 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	Moscow City Court 24/11/2017	Art. 5 (1) - detention as administrative suspect in excess of 3 hours, from 01/10/2017 to 03/10/2017, for the purpose of drawing up a record of administrative offence; the applicant remained in detention even after the said record had been completed; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								offence proceedings – Final decision: Moscow City Court, 24/11/2017	
11.	54005/18 01/11/2018	**Alisa Yuryevna GORDEYEVA** 1990	Sergeyeva Irina Vadimovna Moscow	Manifestation against ban of the Telegram messenger Moscow 16/04/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	Moscow City Court 30/05/2018	Art. 5 (1) - detention of the applicant from 16/04/2018 to 17/04/2018, in excess of 3 hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court 30/05/2018	3,900
12.	55233/19 07/10/2019	**Aleksey Viktorovich LEONTYEV** 1980	Glukhov Aleksey Vladimirovich Novocheboksarsk	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 10,000	Moscow City Court 14/08/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court 14/08/2019	3,900
13.	60220/19 12/11/2019	**Sergey Andreyevich ASAINOV** 1992	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/08/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of 3 hours, from 4.40 p.m. on 03/08/2019 to 00.00 a.m. on 04/08/2019, for the purpose of drawing up a record of administrative offence; the time of arrest noted therein was at variance with the actual time of the apprehension; the applicant remained in detention even after the said record was completed; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court	3,900

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								30/08/2019	
14.	6875/20 23/01/2020	**Nikita Sergeyevich IVANOV** 1986	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow, Tverskaya street 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/10/2019	Art. 5 (1) - detention as administrative suspect from 5.10 p.m. on 03/08/2019 to 05.00 a.m. on 04/08/2019, in excess of 3 hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court 16/10/2019	3,900
15.	8321/20 28/01/2020	**Aleksandr Sergeyevich FINIAREL** 1994	Eysmont Mariya Olegovna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	administrative detention of 7 days	Moscow City Court 02/08/2019	Art. 5 (1) – overnight detention as administrative suspect from 27/07/2019 to 28/07/2019 for the purpose of drawing up a record of administrative offence; the applicant remained in detention even after the said record was completed, until the hearing in his administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court, 02/08/2019	3,900
16.	8585/20 29/01/2020	**Dmitriy Vasilyevich SHCHERBAKOV** 1989	Popkov Aleksandr Vasilyevich Sochi	Artistic manifestation ("Monstratsiya") Kursk 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kursk Regional Court 23/08/2019		3,000

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17.	8602/20 29/01/2020	**Yaroslav Gennadyevich UGLITSKIY** 1999	Popkov Aleksandr Vasilyevich Sochi	Artistic manifestation ("Monstratsiya") Kursk 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kursk Regional Court 23/08/2019		3,000
18.	8605/20 29/01/2020	**Mariya Olegovna ZHUKOVA** 2000	Popkov Aleksandr Vasilyevich Sochi	Artistic manifestation ("Monstratsiya") Kursk 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kursk Regional Court 27/08/2019		3,000
19.	9244/20 03/02/2020	**Bogdan Nikolayevich DUMA** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/08/2019	Art. 5 (1) - overnight detention as administrative suspect from 03/08/2019 to 04/08/2019, in excess of 3 hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court 28/08/2019	3,900
20.	9489/20 12/02/2020	**Mikhail Ivanovich KOSENKOV** 1963	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/10/2019	Art. 5 (1) - detention as administrative suspect from 4.05 p.m. on 03/08/2019 to 00.15 a.m. on 04/08/2019, in excess of 3 hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) – 1) lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-	3,900

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								offence proceedings – Final decision: Moscow City Court 02/10/2019	
21.	28774/20 03/07/2020	**Rostislav Dmitriyevich RYKOV** 1991	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/11/2019	Art. 5 (1) – escorting and detention as administrative suspect on 27/07/2019, from 03.00 to 8.15 p.m., for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court 28/11/2019	3,900
22.	31927/20 20/06/2020	**Stepan Mikhaylovich MINAYEV** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) – escorting and overnight detention as administrative suspect from 27/07/2019 in the evening to 28/07/2019, for the purpose of drawing up a record of administrative offence, whereas that report was drawn up three days later, in the applicant's absence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – Final decision: Moscow City Court 10/10/2019	3,900

[1] Plus any tax that may be chargeable to the applicants.